

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----
ALEX PAGAN,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTION, OFCR. JULIO
NAPOLEONIS, SGT. JARED PETRASSI and
"JOHN DOES 1-18," PERSONS EMPLOYED BY
THE CITY OF NEW YORK,Defendants.

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X

SUMMONS

Index No.: _____

Date Filed: _____

Plaintiff designates

New York County
as the place of trialThe basis of venue is based on
CPLR § 504(3)

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
June 14, 2022

/s/ Michael Leinoff

Michael S. Leinoff, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff ALEX PAGAN
26 Broadway, 3rd Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7386-LK

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2020PI007350, 100 Church Street, New York, NY 10007
NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10038
NEW YORK CITY DEPT. OF CORRECTION, 75-20 Astoria Blvd. East Elmhurst, NY 11370

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
ALEX PAGAN,

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CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTION, OFCR. JULIO
NAPOLEONIS, SGT. JARED PETRASSI and
“JOHN DOES 1-18,” PERSONS EMPLOYED BY
THE CITY OF NEW YORK,Defendants.
-----**VERIFIED COMPLAINT**

Index No.:

ALEX PAGAN (hereinafter the “Plaintiff”), by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants the CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF CORRECTION, OFCR. JULIO NAPOLEONIS, SGT. JARED PETRASSI and “JOHN DOES 1-18,” PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively “Defendants”), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violation of his rights under the Fourth, Fifth, Eighth, and Fourteenth Amendments of the United States Constitution, false arrest, and negligent supervision.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of the City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter “City”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (“NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant NEW YORK CITY DEPARTMENT OF CORRECTION (“DOC”) was and is an agency of Defendant City.

6. At all relevant times, OFCR. JULIO NAPOLEONIS (“Napoleonis”) was an officer employed by the NYPD, hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

7. At all relevant times, SGT. JARED PETRASSI (“Petrassi”) was a supervising officer employed by the NYPD, hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

8. Napoleonis and Petrassi are referred to herein as the “Officers.”

9. At all relevant times, the names of Defendants “John Does 1-18” are fictitious and are intended to be individuals engaged in law enforcement who were involved in the arrest and detention of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

10. At all relevant times, Defendants were involved in violating Plaintiff’s rights and in so doing acted or failed to act, as alleged herein, under color of the statutes, ordinances, customs, policies, procedures, and/or rules of the State and City of New York, and within the scope of their employment.

11. Defendants Napoleonis, Petrassi, and John Does 1-18 are sued herein in both their individual and official capacities.

FACTS

12. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits. Therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

13. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) with the City in accordance with General Municipal Law Section 50-e and 50-I on or about March 2, 2020. This Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

14. At least thirty (30) days has passed since service of the Notice of Claim and payment of the claim has been either refused or neglected.

15. A General Municipal Law Section 50-h hearing was held on or about January 21, 2021.

16. This action is being commenced within one year and ninety days of the date on which all claims accrued.

17. Plaintiff has complied with all conditions precedent to maintain this action.

18. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Arrest of June 15, 2019

19. On or about June 15, 2019, at or near the corner of 138th St. and Lenox Avenue in the County of New York, City and State of New York, between 1:00 and 3:00 pm, Plaintiff was working as a mover, assisting a client in moving furniture from an upstairs apartment.

20. While Plaintiff was standing in the building, two unidentified NYPD officers on foot approached him and began questioning him about his employer's moving van, which was parked outside on the street in front of the building. They suggested a belief that the van was stolen.

21. Plaintiff advised the officers that his employer, Daniel (last name unknown) was not present at that time as he had briefly left to run an errand, but Plaintiff expected him to return soon. He offered to give the officers keys and allow them to search the van.

22. Plaintiff attempted to resume his work, but the officers called him outside. They detained him on the sidewalk until their sergeant arrived. At that time, the officers placed Plaintiff under arrest and handcuffed him.

23. The officers took Plaintiff to the 135th Precinct. He was held in the precinct for between five and six hours. Plaintiff was then moved to Central Booking, where he remained for another four hours. He was never read his Miranda warnings.

24. At Central Booking, Plaintiff was advised of the charges against him. He was charged with Unauthorized Use of a Vehicle in the Third Degree under PL 165.05(1), Aggravated Unlicensed Operation of a Motor Vehicle in the Third Degree, under VTL 511(1)(a), and Unlicensed Driving, under VLT 509(1). He was not, in fact, operating a vehicle at any relevant

time.

25. The ticket number was 3040840 and the case was prosecuted under Docket # CR-019717-19NY. A copy of the Misdemeanor Information is annexed as **Exhibit "A"**.

26. Plaintiff eventually had a court date. Thereat, he was remanded under a parole hold and sent to Rikers Island Correctional Facility. He remained there for five and a half months. During that time, he had four or five court appearances. On the last appearance, December 2, 2019, the charges were dismissed.

27. While in custody, Plaintiff suffered two assaults by his fellow inmates. The first took place shortly after he arrived. Therein, he was assaulted by three other inmates, resulting in bruising and lacerations. There were corrections officers nearby, but they did not intervene. Plaintiff did not instigate this incident, he merely defended himself. Plaintiff does not know what prompted this incident and cannot identify his attackers.

28. Plaintiff was treated by the prison medical staff for bruising and lacerations.

29. A few months later, while in the day room, another inmate approached Plaintiff. This inmate, whose name is also unknown, instigated an argument, forcing Plaintiff to again defend himself.

30. Plaintiff was subsequently placed in solitary confinement for fifteen days, then released back into General Population.

31. Plaintiff now suffers from long-lasting emotional injury. He has paranoia, cannot socialize with people normally, and fears police officers.

32. His period of incarceration led to his being terminated from one of his jobs.

33. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION**STATE CLAIMS**

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

34. The allegations set forth in paragraphs "1" through "32" inclusive are incorporated herein as if fully set forth.

35. Acting within the scope of their employment, Defendant Officers engaged in extreme and outrageous conduct throughout the course of the arrest and detention of Plaintiff.

36. Defendant Officers caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

37. Defendant Officers knew or should have known that the extreme and outrageous conduct in which they engaged would result in injury to Plaintiff and did, in fact, result in such injury.

38. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

39. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or in disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

40. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress, which had a disabling effect on Plaintiff.

41. Defendants City, DOC, and NYPD are responsible and liable for the acts of Defendant Officers performed within the scope of their employment through the doctrine of *respondeat superior*.

42. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including pain and suffering, loss of enjoyment of life, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

43. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard for the rights of others and renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS CITY, DOC, AND NYPD FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

44. The allegations set forth in paragraphs "1" through "43" inclusive are incorporated herein as if fully set forth.

45. Defendants City, DOC, and NYPD failed to exercise reasonable care in hiring, training, retaining, and supervising Defendant Officers, thereby breaching their duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising of employees.

46. Defendants City, DOC, and NYPD knew or and should have known of the dangerous propensities of the Defendant Officers to commit injurious acts of the type alleged herein.

47. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including pain and suffering, loss of enjoyment of life, emotional distress, trauma, depression, professional and economic losses, and other

financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

48. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard to the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE

49. The allegations set forth in paragraphs “1” through “48” inclusive are incorporated herein as if fully set forth.

50. Defendants had a special duty to refrain from using permitting offensive bodily contact during Plaintiff’s arrest and detention.

51. Defendants’ acts and/or omissions in causing the aforementioned offensive bodily contact; negligently hiring, retaining, training, and supervising of its employees, officers, agents, and/or contractors; and their infliction of emotional distress were in breach of the duty of care owed to Plaintiff.

52. Defendants City, DOC, and NYPD, and Officers acted negligently and in reckless disregard for Plaintiff’s rights in causing and/or permitting him to be arrested without probable cause, suffer assault and battery by his fellow inmates; intentionally and/or negligently inflicting emotional distress upon Plaintiff; failing to furnish medical and/or psychological care to Plaintiff, and failing to properly hire, train or supervise employees.

53. Defendant City is responsible and liable for the acts of Defendant Officers performed within the scope of their employment under the doctrine of *respondeat superior*.

54. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained serious physical and emotional injuries including pain and suffering, loss of enjoyment of life, emotional distress, trauma, depression, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

55. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it evinces a conscious disregard for the rights of others and renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
FALSE ARREST/ FALSE IMPRISONMENT

56. The allegations set forth in paragraphs "1" through "55" inclusive are incorporated herein as if fully set forth.

57. Defendants Officers intended to cause the wrongful and unlawful prosecution of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

58. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of his liberty, and caused him to be taken into police custody, and charged with crimes he did not commit.

59. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful arrest and imprisonment of Plaintiff. Plaintiff was aware of such confinement by Defendants and did not consent to said confinement.

60. The aforementioned confinement was not privileged in any way and was without legal justification.

61. Plaintiff was thereafter caused to be incarcerated for approximately ten (10) hours.

62. Defendant City is responsible and liable for the acts of Defendants Officers done within the scope of their employment under the doctrine of *respondeat superior*.

63. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

64. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DOC FOR FAILURE TO INTERVENE PURSUANT TO 42 U.S.C. §1983

65. The allegations set forth in paragraphs "1" through "64" inclusive are incorporated herein as if fully set forth

66. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

67. Plaintiff has a clearly established constitutional right to be free from physically abusive government conduct.

68. Plaintiff has a clearly established constitutional right to be free from cruel and unusual punishment.

69. During Plaintiff's detention, he was intentionally or in a grossly negligent manner subjected to physical abuse by the arresting officers.

70. Some or all of the Defendants who observed or was otherwise made aware that Plaintiff had been unjustifiably and falsely arrested and subjected to physical and mental abuse.

71. Each of these Defendants had a realistic opportunity to prevent injury and harm to Plaintiff.

72. Each of these Defendants knew or should have known that they had an affirmative duty to intervene to protect Plaintiff's constitutional rights from infringement by other law enforcement officials in their presence.

73. Defendants nonetheless intentionally and/or in a grossly negligent manner failed to intervene to protect Plaintiff's rights and prevent injury once they became aware that Plaintiff was in severe pain and physical distress from having been battered about the body and pushed to the ground.

74. In doing so, DOC was deliberately indifferent to Plaintiff's aforementioned clearly established constitutional rights.

75. DOC knew or should have known that there was a serious widespread and ongoing problem within the DOC of incidents that resulted in physical injury to non-violent and non-resisting inmates, and that DOC employees looked the other way and took no action when other inmates used excessive force and inflicted unnecessary physical injuries on arrestees in their presence.

76. However, Defendants maintained a policy of deliberate indifference to the rights of inmates to be safe while incarcerated; failed to promulgate and implement policies and procedures regarding proper method of supervising inmates for safety; failed to promulgate and implement policies or procedures requiring DOC employees to take affirmative action to prevent or stop incidents; failed to appropriately discipline DOC employees who fail to intervene when inmates

cause unjustified injury to arrestees or otherwise violate constitutional rights, as well as those who supervise such DOC employees; failed to establish and maintain a meaningful system for responding to complaints of pain or physical distress by individuals in police or DOC custody; failed to implement measures to ensure that DOC employees are appropriately supervised by qualified and well-trained staff; authorized, tolerated and ratified the misconduct of DOC employees; and failed to intervene when employees, officers, agents, and/or contractors violated well-established statutory and constitutional rights.

77. DOC knew or should have known that those failures would cause the violation of the constitutional rights of citizens who come in contact with the DOC.

78. As a direct result of these failures, Plaintiff was subjected to injury.

79. By reason of their acts and omissions, DOC, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from injury, and cruel and unusual punishment in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

80. As a direct and proximate cause of DOC's acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

81. The conduct of DOC set forth above and complained of herein was so evil, malicious and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others, and renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION
AGAINST DEFENDANTS NYC, DOC, AND NYPD FOR
FAILURE TO TRAIN PURSUANT TO 42 U.S.C. §1983

82. The allegations set forth in paragraphs “1” through “81” inclusive are incorporated herein as if fully set forth.

83. Defendants NYC, DOC, and NYPD had an obligation to provide training to employees regarding proper method of effectuating an arrest; the affirmative duty to intervene to stop all violations of constitutional rights by other law enforcement officials in an officer’s presence; the constitutional right to be free from unreasonable search and seizure; the proper protocol for handling complaints or observations of pain or physical distress by individuals in police custody; and the requirement that all physical force towards arrestees must be proportional and justified.

84. Defendants NYC, DOC, and NYPD were deliberately indifferent to its obligation to provide training to their employees on the subjects listed above.

85. Defendants NYC, DOC, and NYPD knew or should have known that their failure to provide said training would endanger the health, safety, and well-being of citizens and lead to constitutional violations.

86. In failing to provide adequate training, Defendants NYC, DOC, and NYPD were deliberately indifferent to the rights of citizens to be free from unreasonable search and seizure, cruel or unusual punishment, and abusive government conduct.

87. As a direct result of these failures, Plaintiff was subjected to unreasonable search and seizure, in violation of his rights.

88. By reason of their acts and omissions, Defendants NYC, DOC, and NYPD, acting under color of state law, with gross disregard for Plaintiff’s rights, deprived Plaintiff of his rights

to be free from injury, physically abusive government conduct, and cruel and unusual punishment in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

89. As a direct and proximate cause of Defendants NYC, DOC, and NYPD's acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF CORRECTION, OFCR. JULIO NAPOLEONIS, SGT. JARED PETRASSI and "JOHN DOES 1-18," PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
June 13, 2022

/s/ Michael Leinoff

Michael S. Leinoff, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff ALEX PAGAN
26 Broadway, 3rd Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7386-LK

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am an associate of Lebedin Kofman LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman LLP maintains its offices.

Dated: New York, New York
June 14, 2022

/s/ Michael Leinoff

Michael S. Leinoff, Esq.